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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

WESTERN DIVISION

GREGORY WALKER, individually and on behalf of all others similarly situated, Plaintiff, vs. RONIN STAFFING LLC; UCLA HEALTH; STERLING INFOSYSTEMS, INC. and DOES 1-5. Defendants.	Case No.: **CLASS ACTION COMPLAINT AND DEMAND FOR JURY TRIAL**

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Plaintiff Gregory Walker ("Plaintiff"), individually and on behalf of all others similarly situated, brings this Class Action Complaint ("Complaint") against defendant Ronin Staffing LLC ("Ronin"), UCLA Health ("UCLA Health"), and Sterling Infosystem, Inc. ("Sterling")[1], and alleges as follows:

SUMMARY OF ACTION

1. Plaintiff, individually and on behalf of all others similarly situated, brings this action for damages and other legal and equitable remedies, based on: (i) the unlawful and unfair conduct of Ronin's and UCLA Health ("Employer Defendants") in using information disclosed in the California Department of Justice Megan's Law Website ("Megan's Law Website") for employment purposes; (ii) Employer Defendants' failure to conduct an individualized assessment of whether Plaintiff's conviction history has a direct and adverse relationship with the specific duties of an UCLA Health program analyst that justified denying him the position; (iii) Sterling's unlawful and unfair conduct in furnishing to Employer Defendants investigative background reports containing records of arrest, indictment, misdemeanor complaint, or conviction of a crime that antedate the report by more than seven (7) years; and (iv) Employer Defendants failure to provide a pre-adverse action notice and post-adverse action notice before and after taking adverse action against Plaintiff based on information contained in the background report.

2. In so doing, Employer Defendants violated the: (i) California Megan's Law, Penal Code § 290.46 ("Megan's Law"); (ii) California Fair Chance Act, Government Code § 12952; (iii) federal Fair Credit Reporting Act ("FCRA"), 15 U.S.C. § 1681b(b)(3); and (iv) California Unfair Competition Law ("UCL"), Business and Professions Code § 17200. Sterling violated: (i) California's Investigative Consumer Reporting Agencies Act ("ICRAA"), Civil Code § 1786.18; and (ii) the UCL, Business and Professions Code § 17200.

[1] Ronin and UCLA Health are collectively referred to in the Complaint as "Employer Defendants." Ronin, UCLA Health, and Sterling are collectively referred to in the Complaint as "Defendants."

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3. With respect to Ronin and UCLA Health's unlawful and unfair use of information on the Megan's Law Website, pursuant to the applicable statutes, Plaintiff seeks an injunction and public injunctive relief ordering that, moving forward, Ronin and UCLA Health cease from using information on the Megan's Law Website for employment purposes. With respect to Employer Defendants' failure to conduct an individualized assessment of whether an applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position, Plaintiff seeks an injunction and public injunctive relief ordering that, moving forward, Employer Defendants institute a robust program to provide for the individualized assessment of each prospective employee or employee with a known conviction history. With respect to Employer Defendants unlawful and unfair conduct in failing to provide pre-adverse action and post-adverse action notices, Plaintiff seeks an injunction and public injunctive relief ordering that, moving forward, Employer Defendants cease such conduct. With respect to Sterling's furnishing of investigative background reports containing records of arrest, indictment, misdemeanor complaint, or conviction of a crime that antedate the report by more than seven years, pursuant to the applicable statutes, Plaintiff seeks an injunction and public injunctive relief ordering that, moving forward, Sterling cease such conduct.

THE PARTIES

4. Plaintiff is an individual consumer residing in the State of California, Los Angeles County.

5. Defendant Ronin is an employer, staffing agency, and "full-service provider of award-winning Human Capital Management, Temporary & Direct Hire Support." Ronin is a California limited liability company headquartered in Los Angeles County, California. On information and belief, at all times Ronin was an agent and fiduciary representative and acted at the direction of UCLA Health.

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6. Defendant UCLA Health is the public healthcare system affiliated with the University of California, Los Angeles, located in Los Angeles, California. It comprises a number of hospitals, UCLA David Geffen School of Medicine, and an extensive primary care network in the Los Angeles region.

7. Defendant Sterling is a consumer reporting agency that assembles and provides consumer reports to third parties for employment purposes and facilitates third party background checks. Sterling is a Delaware corporation with headquarters in Independence, Ohio.

8. Doe Defendants 1-5 are companies and/or individuals who used information on the Megan's Law Website for employment purposes, failed to conduct an individualized assessment, failed to provide pre-adverse action or post-adverse action notices, and/or generated background reports in violation of the ICCRAA.

JURISDICTION AND VENUE

9. This is an action brought under 15 U.S.C. § 1681b, 1681n and § 1681o of the FCRA. The Court has jurisdiction over this action pursuant to 28 U.S.C. § 1331 because it arises under the laws of the United States. This Court also has jurisdiction over this action pursuant to the Class Action Fairness Act, 28 U.S.C. § 1332(d)(1). Plaintiff brings a class action under Federal Rule of Civil Procedure 23. Plaintiff and Sterling are citizens of different states, and on information and belief, the amount in controversy exceeds the sum of $5,000,000.00.

10. Venue in this district is proper under 28 U.S.C. § 1391(b)(2) because Plaintiff is a resident of Los Angeles County and a substantial part of the events or omissions giving rise to the claim occurred in this District.

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STATEMENT OF FACTS

A. Following His Conviction And Release, Plaintiff Worked Diligently To Rehabilitate And Become A Productive Member Of His Community

11. Plaintiff is a graduate of the California State University, Los Angeles. In or around June 2008, Plaintiff obtained his Bachelors of Science from Cal State LA in Business Administration with a minor in Finance and Economics.

12. That same month, in June 2008 Plaintiff was convicted of committing a sexual offense. Plaintiff served approximately four months in jail for his conviction and was released in or about October 2008. Plaintiff was placed on five years of probation. Plaintiff's probation expired in or around June 2013.

13. As a result of the conviction, Plaintiff appears as a registered sex offender on the Megan's Law Website, along with information about the basis for his conviction.

14. Since his release, Plaintiff has worked extremely diligently to become a productive member of society and gain the skills and knowledge to start a professional career in programming and business. Plaintiff has worked as a software engineer, computer programmer, and computer programming tutor.

15. To become more proficient in technology and programming, Plaintiff attended school full time and obtained a Master of Science in Software Engineering in 2019 from California State University, Fullerton. Plaintiff has extensive software engineering skills and is proficient in various coding languages, including C++, JavaScript and Python.

16. However, even with a B.S. from Cal State LA and a M.S. from Cal State Fullerton Plaintiff has faced extreme difficulty finding a steady, full-time job commensurate with his education and skillset.

17. Plaintiff is now happily married and is eager to move far beyond the mistake of his past. Plaintiff deeply regrets the actions that led to his conviction, and since his release he has made every effort to rebuild and redefine himself by

educating himself and working diligently to become a productive member of his community. However, the "powers that be," including Ronin, UCLA Health, and Sterling continue to place roadblocks that have made it very difficult for Plaintiff to transition and be a contributing member of society.

B. Based On Information Provided By Sterling In A Consumer Report, Employer Defendants Used Information From The Megan's Law Website For Employment Purposes And Rescinded Plaintiff's Job Offer

18. In late 2022, Ronin contacted Plaintiff about employment with UCLA Health for a program analyst position. Ronin said that Plaintiff would be a great candidate for the position.

19. Plaintiff expressed his interest in the position, and subsequently was contacted directly by UCLA Health for an interview. After completing two rounds of interviews, UCLA Health offered Plaintiff the program analyst position and provided a list of information for Plaintiff to review and complete, including an employment agreement and authorization form for a background check.

20. Ronin also sent Plaintiff an application, which he completed and returned.

21. Plaintiff completed a number of exams, including a drug test and COVID-19 test. At UCLA Health's direction, Plaintiff also completed numerous training courses provided by UCLA Health and was advised that he would be paid for his time completing the courses.

22. In early October 2022, at Employer Defendants' direction, Sterling conducted a background check of Plaintiff and generated and sent Employer Defendants a copy of the background report.

23. In the Section entitled DOJ Sex Offender Search, the background report states: "WALKER, GREGORY EUGENE IS CURRENTLY A REGISTERED SEX OFFENDER IN THE STATE OF CALIFORNIA."

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24. Subsequently, in October 2023 UCLA Health informed Plaintiff that the offer was rescinded because of information contained in Plaintiff's background report.

25. Before rescinding the job offer, neither Employer Defendants nor Sterling provided Plaintiff with a copy of the consumer report or notice that his employment could be adversely impacted.

26. After the job offer was withdrawn, Plaintiff did not receive notice in writing that adverse action had been taken based on the background report from Sterling.

27. On information and belief, at no time did Employer Defendants conduct an individualized assessment of whether Plaintiff's conviction history has a direct and adverse relationship with the specific duties of a UCLA Health program analyst.

28. Ronin and UCLA Health refused to hire Plaintiff because of conviction information Sterling obtained from the Megan's Law website and disclosed in the background report to Employer Defendants. Ronin and UCLA Health also did not compensate Plaintiff for the time he was employed and the numerous trainings he completed.

29. If Defendants would give Plaintiff a fair chance at employment, Plaintiff would like to apply again to work for Employer Defendants.

CLASS ACTION ALLEGATIONS

30. Plaintiff brings this action on behalf of himself and all others similarly situated (the "Classes"), pursuant to Federal Rule of Civil Procedure 23(b)(2) and 23(b)(3), based on the following class definitions:

> **Megan's Law Class**: All persons in California who applied for employment with Employer Defendants and were denied employment as a result of Ronin and/or UCLA Health's use of information disclosed in the Megan's Law Website, during the relevant statute of limitations period.

Fair Chance Class: All persons in California who applied for employment with Ronin and/or UCLA Health and were denied employment as a result of their conviction history.

ICRAA Class: All persons in California on whom Sterling conducted a background search and furnished an investigative consumer report containing records of arrest, indictment, misdemeanor complaint, or conviction of a crime that, from the date of disposition, release, or parole, antedate the report by more than seven years, during the relevant statute of limitations period.

FCRA Class: All persons in the United States who were denied employment by Ronin and/or UCLA Health based on information contained in a consumer report, during the relevant statute of limitations period.

31. Excluded from the Classes are: (1) Defendants, any entity or division in which Defendants have a controlling interest, and their legal representatives, officers, directors, assigns, and successors; and (2) the Judge to whom this case is assigned and the Judge's staff. Plaintiff reserves the right to amend or expand the Classes' definitions to seek recovery on behalf of additional persons as warranted as facts are learned in further investigation and discovery.

Megan's Law Class

32. Plaintiff and members of the Megan's Law Class were harmed by the acts of Ronin and UCLA Health in at least the following ways: Employer Defendants used registry information in the Megan's Law Website for purposes relating to employment, Defendants denied Plaintiff and other members of the Megan's Law Class employment based on information from the Megan's Law Website, and this violation caused Plaintiff and Megan's Law Class members to lose an opportunity to earn income, have a lawful paying job, contribute to the workforce, be productive members of their community, and severe emotional distress, anxiety, deep frustration and loss of sleep.

33. Common questions of fact and law exist as to all members of the Megan's Law Class, which predominate over any questions affecting only Plaintiff or individual members of the Megan's Law Class. These common legal and factual questions, which do not vary between the Megan's Law class members, and which may be determined

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without reference to the individual circumstances of any Megan's Law Class members, include, but are not limited to, the following:

A. Whether, within four years prior to the filing of this Complaint, Employer Defendants used information in the Megan's Law Website for purposes relating to employment;

B. Whether, within four years prior to the filing of this Complaint, Employer Defendants denied Plaintiff and other members of the Megan's Law Class employment based on information from the Megan's Law Website;

C. Whether Plaintiff and the Megan's Law Class members were damaged thereby, and the extent of damages for such violation;

D. Whether such conduct is unlawful; and

E. Whether Employer Defendants should be enjoined from engaging in such conduct in the future.

34. As a person who was denied employment as a result of information in the Megan's Law Website, Plaintiff is asserting claims that are typical of the Megan's Law Class.

Fair Chance Class

35. Plaintiff and members of the Fair Chance Class were harmed by the acts of Ronin in at least the following ways: Employer Defendants intended to deny Plaintiff and members of the Fair Chance Class a position of employment solely or in part because of their conviction history and did not make an individualized assessment of whether their conviction history had a direct and adverse relationship with the specific duties of the job that justified denying them the position. This violation caused Plaintiff and Fair Chance Class members to lose an opportunity to earn income, have a lawful paying job, contribute to the workforce, be productive members of their community, and severe emotional distress, anxiety, deep frustration and loss of sleep.

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36. Common questions of fact and law exist as to all members of the Fair Chance Class which predominate over any questions affecting only individual members of the Fair Chance Class. These common legal and factual questions, which do not vary between the Fair Chance Class members, and which may be determined without reference to the individual circumstances of any Fair Chance Class members, include, but are not limited to, the following:

A. Whether within three years prior to the filing of this Complaint Employer Defendants conducted individualized assessments of job applicants with a conviction history;

B. Whether Employer Defendants' conduct was unlawful; and

C. Whether Employer Defendants should be ordered to comply with the Fair Chance Act in the future.

37. As a person with job applicant with a conviction history who was denied employment by Employer Defendants without an individualized assessment, Plaintiff is asserting claims that are typical of the Fair Chance Class.

ICRAA Class

38. Plaintiff and members of the ICRAA Class were harmed by the acts of UCLA Health in at least the following ways: Sterling furnished information to Employer Defendants in an investigative consumer report containing records of arrest, indictment, misdemeanor complaint, or conviction of a crime that, from the date of disposition, release, or parole, antedate the report by more than seven years. This violation caused Plaintiff and ICRAA Class members to lose an opportunity to earn income, have a lawful paying job, contribute to the workforce, be productive members of their community, and severe emotional distress, anxiety, deep frustration and loss of sleep.

39. Common questions of fact and law exist as to all members of the ICRAA Class which predominate over any questions affecting only individual members of the ICRAA Class. These common legal and factual questions, which do not vary between

the ICRAA Class members, and which may be determined without reference to the individual circumstances of any ICRAA Class members, include, but are not limited to, the following:

A. Whether within two years prior to the filing of this Complaint Sterling furnished information to third parties (including Ronin and UCLA Health) in an investigative consumer report containing records of arrest, indictment, misdemeanor complaint, or conviction of a crime that, from the date of disposition, release, or parole, antedate the report by more than seven years;

B. Whether Sterling's conduct was unlawful; and

C. Whether Sterling should be enjoined from engaging in such conduct in the future.

40. As a person that who applied for employment and on whom UCLA Health furnished an investigative consumer report containing records of arrest, indictment, misdemeanor complaint, or conviction of a crime that, from the date of disposition, release, or parole, antedate the report by more than seven years, Plaintiff is asserting claims that are typical of the ICRAA Class.

FCRA Class

41. Plaintiff and members of the FCRA Class were harmed by the acts of Employer Defendants in at least the following ways: Employer Defendants requested a background search and received a consumer report containing conviction information about Plaintiff. Before taking adverse action based on information in the report Employer Defendants did not provide Plaintiff with a copy of the report or a description in writing of his rights under the FCRA ("pre-adverse action notice"). After taking adverse action, Employer Defendants failed to provide Plaintiff with notice that adverse action had been taken based in whole or in part on information in the background report, information about Sterling, and Plaintiff's other rights under the FCRA ("post-adverse action notice"). This violation caused Plaintiff and FCRA Class

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members an opportunity to dispute information in the reports, to lose an opportunity to earn income, have a lawful paying job, contribute to the workforce, be productive members of their community, and severe emotional distress, anxiety, deep frustration and loss of sleep.

42. Common questions of fact and law exist as to all members of the FCRA Class which predominate over any questions affecting only individual members of the FCRA Class. These common legal and factual questions, which do not vary between the FCRA Class members, and which may be determined without reference to the individual circumstances of any FCRA Class members, include, but are not limited to, the following:

A. Whether Employer Defendants failed to provide a pre-adverse action and post-adverse action notice;

B. Whether Employer Defendants' conduct was unlawful; and

C. Whether Employer Defendants should be enjoined from engaging in such conduct in the future.

43. As a person that who applied for employment with Employer Defendants and on whom Sterling furnished a background consumer report containing conviction information from the Megan's Law Website that was used by Ronin and/or UCLA Health for employment decisions, Plaintiff is asserting claims that are typical of the FCRA Class.

The Classes

44. The members of the Classes are so numerous that joinder of all members would be unfeasible and impractical. The membership of the Classes is currently unknown to Plaintiff at this time; however, given that, on information and belief, Ronin and UCLA Health staff and/or hire thousands of employees in California each year, and Sterling furnishes background reports for tens of thousands of prospective employees in California per year, the members of each of the Classes are so numerous that joinder of all members is impracticable. The disposition of their claims in a class

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action is a superior method to individual actions and will provide substantial benefits to the parties and the Court.

45. Plaintiff will fairly and adequately protect the interest of the members of the Classes because Plaintiff has no interests which are adverse to the interest of absent class members and because Plaintiff has retained counsel who possess significant class action litigation experience regarding alleged violations of consumer statutes.

46. A class action is superior to other available methods of fair and efficient adjudication of this controversy because individual litigation of each of the claims of the members of the Classes is impracticable. Even if every Class member could afford individual litigation, the court system could not. It would be unduly burdensome to the courts in which individual litigation of numerous issues would proceed. Individualized litigation would also present the potential for varying, inconsistent, or contradictory judgments and would magnify the delay and expense to all parties and to the court system resulting from multiple trials of the same complex factual issues. By contrast, the conduct of this action as a class action presents fewer management difficulties, conserves the resources of the parties and of the court system, and protects the rights of each member of the Classes.

47. The prosecution of separate actions by individual members of the Classes would create a risk of adjudications with respect to them that would, as a practical matter, be dispositive of the interests of the other Class members not parties to such adjudications or that would substantially impair or impede the ability of such non-party Class members to protect their interests.

48. Ronin, UCLA Health, and Sterling have acted or refused to act in respects generally applicable to the Classes, thereby making appropriate final and injunctive relief with regard to the members of the Classes as a whole.

FIRST CAUSE OF ACTION

CALIFORNIA MEGAN'S LAW

Cal. Pen. Code § 290.46 *et seq*.

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(Against Employer Defendants)

49. Plaintiff repeats, re-alleges, and incorporates by reference all other paragraphs, as if fully set forth herein.

50. California Megan's Law, Penal Code § 290.46 ("Megan's Law"), requires that the Department of Justice maintain a public website identifying persons who are registered sex offenders on the website.

51. To ensure that registered offenders are not discriminated against based on information in the website, the Megan's Law also prohibits the use of information from the Megan's Law Website from being used for employment purposes. Cal. Penal Code § 290.46(j)(2)(E).

52. Ronin and UCLA Health used the information about Plaintiff contained in the Megan's Law Website for employment purposes and denied Plaintiff employment with UCLA Health.

53. As a result of Ronin and UCLA Health's violations, Plaintiff and members of the Class are entitled to recover actual damages, including lost wages, damages for emotional distress, loss of sleep, anxiety, treble damages, statutory damages, a civil penalty of $25,000.00, exemplary damages, and attorney fees and costs. Plaintiff and members of the Megan's Law Class are also entitled to injunctive/preventative relief ordering that, moving forward, Ronin and UCLA Health cease from using information from the Megan's Law site for employment purposes.

SECOND CAUSE OF ACTION

FAIR CHANCE ACT

Cal. Gov. Code § 12952

(Against Employer Defendants)

54. Plaintiff repeats, re-alleges, and incorporates by reference all other paragraphs, as if fully set forth herein.

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55. California's Fair Chance Act, Government Code § 12952, provides that "[a]n employer that intends to deny an applicant a position of employment solely or in part because of the applicant's conviction history shall make an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position." Gov. Code § 12952(c). In making the assessment, the employer must "consider all the following: (i) The nature and gravity of the offense or conduct. (ii) The time that has passed since the offense or conduct and completion of the sentence. (iii) The nature of the job held or sought." *Id*.

56. Ronin and UCLA Health are employers.

57. Plaintiff is an applicant who applied for a position of employment with Employer Defendants.

58. Employer Defendants reviewed Plaintiff's conviction history in the background report and based on the conviction history intended to deny Plaintiff a position of employment solely or in part because of his conviction history.

59. Employer Defendants did not make an individualized assessment of whether Plaintiff's conviction history had a direct and adverse relationship with the specific duties of a program analyst that Plaintiff applied for that would justify denying him the position.

60. The duties of the program analyst included creating various web-based versions of Microsoft Access prototypes using PHP, SQL, and T-SQL. The position was described as a hybrid position that could be handled remotely. Ronin did not consider the nature and gravity of Plaintiff's offense or conduct, the fifteen years that had passed since the offense or conduct and completion of the sentence, or the nature of the job held or sought. It is abundantly clear that Employer Defendants do not provide applicants with a conviction history a "fair chance" at employment.

61. As a result of Employer Defendants' violations, Plaintiff and members of the Fair Chance Class are entitled to recover actual damages, including lost wages,

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damages for emotional distress, loss of sleep, anxiety, treble damages, statutory damages, punitive damages, and attorney fees and costs. Plaintiff and members of the Fair Chance Class are also entitled to injunctive/preventative relief ordering that, moving forward, Employer Defendants comply with the Fair Chance Act and provide each and every applicant with a conviction history an individualized assessment to fairly determine whether she or he is fit for the position.

THIRD CAUSE OF ACTION

INVESTIGATIVE CONSUMER REPORTING AGENCIES ACT

Cal. Civ. Code § 1786.18

(Against Sterling)

62. Plaintiff repeats, re-alleges, and incorporates by reference all other paragraphs, as if fully set forth herein.

63. California Investigative Consumer Reporting Agencies Act ("ICRAA"), Civil Code § 1786.18, prohibits an investigative consumer reporting agency from making or furnishing any investigative consumer report containing, among other things, "[r]ecords of arrest, indictment, information, misdemeanor complaint, or conviction of a crime that, from the date of disposition, release, or parole, antedate the report by more than seven years." Cal. Civ. Code § 1786.18(a)(7).

64. Sterling is an "investigative consumer reporting agency" because it, "for monetary fees or dues, engages in whole or in part in the practice of collecting, assembling, evaluating, compiling, reporting, transmitting, transferring, or communicating information concerning consumers for the purposes of furnishing investigative consumer reports to third parties." Cal. Civ. Code § 1786.2(d).

65. An "investigative consumer report" means a consumer report in which information on a consumer's character, general reputation, personal characteristics, or mode of living is obtained through any means." Cal. Civ. Code § 1786.2(c).

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66. Plaintiff is a "consumer" under the ICRAA because he is "a natural individual who has made application to a person for employment purposes." Cal. Civ. Code § 1786.2(b).

67. Sterling violated the ICRAA by furnishing an investigative consumer report on Plaintiff containing records of a conviction that antedates the report by more than seven years. Sterling's violation was grossly negligent or willful because it was aware of the ICRAA yet elected to ignore and violate the statute.

68. As a result of Sterling's violations, Plaintiff and members of the ICRAA Class are entitled to recover actual damages, including lost wages, damages for emotional distress, loss of sleep, anxiety, treble damages, statutory damages, punitive damages, and attorney fees and costs. Plaintiff and members of the ICRAA Class are also entitled to injunctive/preventative relief ordering that, moving forward, Sterling ceases from including records of arrest, indictment, information, misdemeanor complaint, or conviction in investigative consumer reports that antedate the report by more than seven years.

FOURTH CAUSE OF ACTION

FAIR CREDIT REPORTING ACT

15 U.S.C. § 1681b(b)(3)

(Against Employer Defendants)

69. Plaintiff repeats, re-alleges, and incorporates by reference all other paragraphs, as if fully set forth herein.

70. Ronin is a "person" as defined by the FCRA.

71. UCLA Health is a "person" as defined by the FCRA.

72. Plaintiff is a "consumer" as defined by the FCRA, on who a "consumer report" was generated and furnished, as defined by the FCRA.

73. Employer Defendants obtained a consumer report on Plaintiff, used it for employment purposes, and before taking adverse action failed to provide a pre-adverse action notice, and after taking adverse action failed to provide a post-adverse action

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notice. Thus, Employer Defendants are in violation of the FCRA, 15 U.S.C. § 1681b(b)(3).

74. As a result of Employer Defendants negligent violation of the FCRA, Plaintiff and FCRA Class members are entitled to actual damages, and reasonable attorneys' fees and costs. 15 U.S.C. § 1681n.

75. Employer Defendants also acted with knowledge, willfulness, and reckless disregard of the law, thereby entitling Plaintiff and FCRA Class members to statutory damages of $1,000.00 and punitive damages in an amount to be determined at trial. 15 U.S.C. § 1681n.

FIFTH CAUSE OF ACTION

UNFAIR COMPETITION LAW

California Business & Professions Code §17200

(Against All Defendants)

76. Plaintiff repeats, re-alleges, and incorporates by reference all other paragraphs, as if fully set forth herein.

77. The UCL defines unfair competition to include any unlawful, unfair, or fraudulent business act or practice. The UCL provides that a court may order injunctive relief as a remedy for any violations of the UCL.

78. Beginning on an exact date unknown to Plaintiff, but at all times relevant herein, Defendants have committed acts of unfair and unlawful competition proscribed by the UCL, including the practices alleged herein. The acts of unfair competition include the following:

a. Employer Defendants used information contained in the Megan's Law Website for employment purposes.

b. After receiving the conviction information about Plaintiff, Employer Defendants failed to conduct an individualized assessment before using the conviction information to deny Plaintiff employment.

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c. Sterling included prohibited information in the investigative consumer report on Plaintiff and members of the ICRAA Class.

d. Employer Defendants failed to provide a pre-adverse action notice and post-adverse action notice in connection with denying Plaintiff employment based on information in the background report from Sterling.

79. Defendants' unlawful conduct has caused and continues to cause substantial injury to Plaintiff and the members of the Classes. As a result of Defendants' unfair and unlawful conduct, Plaintiff lost money and/or property, including payments made in connection with the hiring process.

80. The business acts and practices of Defendants, as hereinabove alleged, constitute unfair business practices in that said acts and practices offend public policy and are substantially injurious to consumers and prospective employees. These acts and practices have no utility that outweighs their substantial harm to consumers and prospective employees.

81. The unlawful and unfair business acts and practices of Defendants described herein present a continuing threat to Plaintiff and members of the general public in that Ronin and UCLA Health are currently engaging in such acts and practices, and will persist and continue to do so unless and until an injunction is issued by this Court.

82. Pursuant to Business and Professions Code § 17203, Plaintiff seeks a injunction and public injunctive relief aordering that, moving forward:

a. Ronin and UCLA Health cease from using information on the Megan's Law Website for employment purposes.

b. Ronin and UCLA Health implement and complete individualized assessments on employment candidates where a background report discloses conviction information, in connection with employment decisions.

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c. Sterling ceases from including records of arrest, indictment, information, misdemeanor complaint, or conviction of a crime that antedate the report by more than seven years.

d. Ronin and UCLA Health provide pre-adverse action and post-adverse action notices when making adverse employment decisions based on information contained in a background report.

83. Pursuant to Code of Civil Procedure § 1021.5, Plaintiff seeks recovery of his attorney's fees, costs and expenses incurred in the filing and prosecution of this action

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays that judgment be entered against Ronin, and Plaintiff be awarded the following legal and equitable relief:

1. Certifying the Classes and pursuant to Federal Rule of Civil Procedure 23(b)(2) and (b)(3), certifying Plaintiffs as the representatives of the Classes, and designating their counsel as counsel for the Classes

2. Actual and compensatory damages for injuries suffered by Plaintiffs and the Classes;

3. Statutory damages and treble damages;

4. Punitive/exemplary damages;

5. Civil penalties;

6. Injunctive/preventative relief ordering that, moving forward, Ronin and UCLA Health cease from using information from the Megan's Law Website for employment purposes;

7. Injunctive relief ordering that, moving forward, Ronin and UCLA Health implement and complete individualized assessments where a background report discloses conviction information in connection with employment decisions;

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8. Injunctive relief ordering that, moving forward, Sterling cease from including records of arrest, indictment, information, misdemeanor complaint, or conviction of a crime that antedate the report by more than seven years;

9. Injunctive relief ordering that, moving forward, Ronin and UCLA Health provide pre-adverse action and post-adverse action notices when making adverse employment decisions based on information contained in a background report.

10. Reasonable attorney's fees and costs to bring and maintain the instant action;

11. For such other and further relief as the Court may deem just and proper.

TRIAL BY JURY

Pursuant to the Seventh Amendment to the Constitution of the United States of America, Plaintiff is entitled to, and demands, a trial by jury.

Dated: July 3, 2024

RAY KIM LAW, APC

/s/ Raymond Y. Kim
Raymond Y. Kim
Attorneys for Plaintiff
Gregory Walker

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